IN THE NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH, PRAYAGRAJ

CA (CAA) No.04/ALD/2022

In the matter of
The Companies Act, 2013
And
In the matter of Sections 230-232, and other applicable provisions of the Companies Act, 2013 read with the Companies (Compromises, Arrangements, and Amalgamations) Rules, 2016
And

In the matter of
NIHON IMPEX PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 1956 and having Company Identification Number (CIN: U51109UP1992 PTC 147101) and having its Registered Office at FLAT NO 502, GOKUL COLONY DILEZAKPUR, GORAKHPUR - 273001 in State of Uttar Pradesh.

***DEMERGED COMPANY / APPLICANT NO 1

And

In the matter of:
GALLANTT INDUSTRY PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 2013 and having Company Identification Number (CIN:U26990UP2020PTC137202)and having its Registered Office at 8TH FLOOR GALLANTT LAND MARK BANK ROAD GORAKHPUR - 273001 in State of Uttar Pradesh

***RESULTING COMPANY NO.1 / APPLICANT NO 2

And

In the matter of:
GALLANTT UDHYOG PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 2013 and having Company Identification Number (CIN: U15123UP2020PTC137201) and having its Registered Office at 8TH FLOOR GALLANTT LAND MARK BANK ROAD GORAKHPUR-273001 in State of Uttar Pradesh.

***RESULTING COMPANY NO.2 / APPLICANT NO 3

And
In the matter of:
SHREE SURABHI WHEAT PRODUCTS PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 2013 and having Company Identification Number (CIN: U15400UP2014PTC064992) and having its Registered Office at GALLANTT LANDMARK, PURDILPUR, BANK ROAD,GORAKHPUR- 273001 in State of Uttar Pradesh.

***RESULTING COMPANY NO.3 / APPLICANT NO 4

And

In the matter of:

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SHREE SURABHI FLOUR MILLS PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 2013 and having Company Identification Number (CIN: U15400UP2014PTC064993) and having its Registered Office at GALLANTT LANDMARK, PURDILPUR, BANK ROAD,GORAKHPUR - 273001 in State of Uttar Pradesh.

***RESULTING COMPANY NO.3 / APPLICANT NO 5

And

In the matter of:
GALLANTT LIFESPACE DEVLOPERS PRIVATE LIMITED, a company incorporated under the provisions of the Companies Act, 2013 and having Company Identification Number (CIN: U45400UP2021PTC148452) and having its Registered Office at VILLA NO-4, SHALIMAR GRAND 10 JOPLING ROAD LUCKNOW- 226001 in State of Uttar Pradesh.

***RESULTING COMPANY NO.5 / APPLICANT NO 6

Order reserved on: 12.04.2022

Order pronounced on: 20.04.2022

Coram:

Sh. Rajasekhar V.K	:	Member (Judicial)
Sh. Virendra Kumar Gupta	:	Member (Technical)

Counsel on Record for the petitioners:

For Applicants	:	Sh. Madan Kumar Maroti,Adv Sh. N. Gurumurthy, FCA Ms. Aisha Amin, Advocate

ORDER

Per se: Virendra Kumar Gupta., Member (Technical)

1. The instant application has been filed in the first stage of the proceedings under Section 230(1) read with Section 232(1) of the Companies Act, 2013 ("Act") for orders and directions with regard to meetings of shareholders and creditors in connection with the Scheme of Arrangement :

   (a) By transfer and vesting of **CEMENT DIVISION** of NIHON IMPEX PRIVATE LIMITED being the Applicant No. 1 above named (" Demerged Company " or "Applicant No.1") into **GALLANTT INDUSTRY PRIVATE LIMITED** being the Applicant No. 2 above named (" Resulting Company No 1 " or "Applicant No.2")

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(b) By transfer and vesting of **AGRO PROCESSING DIVISION** of NIHON IMPEX PRIVATE LIMITED being the Applicant No. 1 above named (" Demerged Company " or "Applicant No.1") into **GALLANTT UDHYOG PRIVATE LIMITED b**eing the Applicant No. 3 above named (" Resulting Company No 2 " or "Applicant No.3")

(c) By transfer and vesting of **AGRO TRADING DIVISION** of NIHON IMPEX PRIVATE LIMITED being the Applicant No. 1 above named (" Demerged Company " or "Applicant No.1") into **SHREE SURABHI WHEAT PRODUCTS PRIVATE LIMITED b**eing the Applicant No. 4 above named (" Resulting Company No 3 " or "Applicant No.4")

(d) By transfer and vesting of **AGRO PROCESSING DIVISION** of NIHON IMPEX PRIVATE LIMITED being the Applicant No. 1 above named (" Demerged Company " or "Applicant No.1") into **SHREE SURABHI FLOUR MILLS PRIVATE LIMITED b**eing the Applicant No. 5 above named (" Resulting Company No 4 " or "Applicant No.5")

(e) By transfer and vesting of **REAL ESTATE & INFRASTRUCTURE DIVISION** of NIHON IMPEX PRIVATE LIMITED being the Applicant No. 1 above named (" Demerged Company " or "Applicant No.1") into **GALLANTT LIFESPACE DEVLOPERS PRIVATE LIMITED b**eing the Applicant No. 6 above named (" Resulting Company No 5 " or "Applicant No.6 ")

with Appointed Date, 01st November,2021 in the manner and on the terms and conditions stated in the said Scheme of Arrangement ("Scheme").

2. It is submitted by Ld. Counsel for the Applicants that the Applicant No.2 and Applicant No.3 are wholly owned subsidiary company of Applicant No.1.

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3. It is submitted by Ld. counsel appearing for the Applicant(s) that the Appointed Date as per the Scheme is 01st November, 2021.
4. It is submitted by Ld. counsel appearing for the Applicant(s) that the Demerged Company / Applicant No 1 is a NBFC Company duly Registered with Reserve Bank of India and holds valid Certificate of Registration .
5. It is submitted by Ld. Counsel appearing for the Applicant(s) that the Valuation Report dated 31-12-2021 recommending the Swap Ratio has been prepared by VISHAL GOEL, IBBI Registered Valuer.
6. It is submitted by Ld. counsel appearing for the Applicant(s) that , the Applicant(s) have the following classes of shareholders and creditors:-

a. APPLICANT NO 1

Number of EQUITYSHAREHOLDERS: 13 as on 31ST October, 2021.

Number of PREFERENCESHAREHOLDERS: NIL

Number of SECURED CREDITORS: 1 as on 31ST October,2021.

Number of UNSECURED CREDITORS: 2 as on 31ST October,2021.

b. APPLICANT NO 2

Number of EQUITY SHAREHOLDERS : 1 as on as on 31ST October,2021.

Number of PREFERENCE SHAREHOLDERS : NIL

Number of SECURED CREDITORS : 1 as on 31ST October,2021.

umber of UNSECURED CREDITORS : 5 as on 31ST October,2021.

c. APPLICANT NO 3

Number of EQUITY SHAREHOLDERS : 1 as on 31ST October,2021.

Number of PREFERENCE SHAREHOLDERS : NIL

Number of SECURED CREDITORS : 1 as on 31ST October,2021.

Number of UNSECURED CREDITORS :4 as on 31ST October,2021.

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d. APPLICANT NO 4

Number of EQUITY SHAREHOLDERS : 9 as on 31ST October,2021.

Number of PREFERENCE SHAREHOLDERS : NIL

Number of SECURED CREDITORS : 2 as on 31ST October,2021.

Number of UNSECURED CREDITORS : 7 as on 31ST October,2021.

e. APPLICANT NO 5

Number of EQUITY SHAREHOLDERS : 6 as on 31ST October,2021.

Number of PREFERENCE SHAREHOLDERS : NIL

Number of SECURED CREDITORS : 2 as on 31ST October,2021.

Number of UNSECURED CREDITORS :2 as on 31ST October,2021.

f. APPLICANT NO 6

Number of EQUITY SHAREHOLDERS : 7 as on 31ST October,2021.

Number of PREFERENCE SHAREHOLDERS : NIL

Number of SECURED CREDITORS : NIL as on 31ST October,2021.

Number of UNSECURED CREDITORS :NIL as on 31ST October,2021.

7. It is further submitted that all the Equity Shareholders of the Applicant Companies have already given their consent to the Scheme by way of affidavits which are annexed to the Company Application.
8. It is further submitted that meeting of Secured Creditors of Applicant No 1 , Applicant No 2, Applicant No 3 , Applicant No 4 and Applicant No 5 be directed to be convened and held.
9. It is further submitted that there is no requirement of meeting of Secured Creditors of Applicant No 6 in view of NIL Creditors evidenced by

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the statutory auditor's certificate of the Company which are annexed to the Company Application.

10. It is further submitted that 100% in value of Unsecured Creditors of the Applicant No.1 have already given their consent to the Scheme by way of affidavits which are annexed to the Company Application.
11. It is further submitted that 100% in value of Unsecured Creditors of the Applicant No.2 have already given their consent to the Scheme by way of affidavits which are annexed to the Company Application.
12. It is further submitted that 100% in value of Unsecured Creditors of the Applicant No.3 have already given their consent to the Scheme by way of affidavits which are annexed to the Company Application.
13. It is further submitted that 100% in value of Unsecured Creditors of the Applicant No.4 have already given their consent to the Scheme by way of affidavits which are annexed to the Company Application.
14. It is further submitted that 100% in value of Unsecured Creditors of the Applicant No.5 have already given their consent to the Scheme by way of affidavits which are annexed to the Company Application.
15. It is further submitted that there is no requirement of meeting of Unsecured Creditors of Applicant No 6 in view of NIL Creditors evidenced by the statutory auditor's certificate of the Company which are annexed to the Company Application.
16. Upon perusing the records and documents in the instant proceedings and considering the submissions made on behalf of the Applicant(s), we allow the instant application and make the following orders:-

- **Meetings dispensed:**

EQUITY SHAREHOLDERS

Meeting of Equity Shareholders of the Applicant Companies for considering the Scheme are dispensed with in view of all shareholders of Applicant Companies having respectively given their consent to the Scheme by way of affidavits.

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UNSECURED CREDITORS

- Meeting of Unsecured Creditors of Applicant No 1 for considering the Scheme are dispensed with in view of consent by 100 % in value of Unsecured creditors of Applicant No 1 having respectively given their consent to the Scheme by way of affidavits.
- Meeting of Unsecured Creditors of Applicant No 2 for considering the Scheme are dispensed with in view of consent by 100 % in value of Unsecured creditors of Applicant No 2 having respectively given their consent to the Scheme by way of affidavits.
- Meeting of Unsecured Creditors of Applicant No3 for considering the Scheme are dispensed with in view of consent by 100% in value of Unsecured creditors of Applicant No3 having respectively given their consent to the Scheme by way of affidavits.
- Meeting of Unsecured Creditors of Applicant No 4 for considering the Scheme are dispensed with in view of consent by 100 % in value of Unsecured creditors of Applicant No 4 having respectively given their consent to the Scheme by way of affidavits.
- Meeting of Unsecured Creditors of Applicant No 5 for considering the Scheme are dispensed with in view of consent by 100 % in value of Unsecured creditors of Applicant No 5 having respectively given their consent to the Scheme by way of affidavits.

- **No requirement of Meetings**

  Secured Creditors of Applicant No 6 - NIL Creditors verified by auditors certificate.

  Unsecured Creditors of Applicant No 6 - NIL Creditors verified by auditors certificate.

- **Meetings to be held**

  Secured Creditors

  Applicant No 1, Applicant No 2, Applicant No 3 , Applicant No 4 and Applicant No 5

- **Meetings date and time**

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- **Secured Creditors of Applicant No 1** at 8th Floor Gallantt Land Mark Bank Road Gorakhpur - 273001 on Wednesday 15th June, 2022 at 10.00 A.M
- **Secured Creditors of Applicant No 2** at 8th Floor Gallantt Land Mark Bank Road Gorakhpur - 273001 on Wednesday 15th June, 2022 at 11.00 A.M
- **Secured Creditors of Applicant No 3** at 8th Floor Gallantt Land Mark Bank Road Gorakhpur - 273001 on Wednesday 15th June, 2022 at 12.00 Noon
- **Secured Creditors of Applicant No 4** at 8th Floor Gallantt Land Mark Bank Road Gorakhpur - 273001 on Wednesday 15th June, 2022 at 1.00 P.M.
- **Secured Creditors of Applicant No 5** at 8th Floor Gallantt Land Mark Bank Road Gorakhpur - 273001 on Wednesday 15th June, 2022 at 2.00 P.M.

- **Mode of Meetings:**

  The Meetings of the Secured Creditors of Applicant No 1 , Applicant No 2, Applicant No 3 , Applicant No 4 and Applicant No 5 will be held Physically .

- **Advertisement:**

  At least 30 (thirty) clear days before the meeting(s) to be held, as aforesaid, an advertisement of the notice of meeting(s) be published once each in the **FINANCIAL EXPRESS** in English and Hindi translation thereof in **RASHTRIYA SAHARA** as per Rule 7 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016.

- **Individual Notices:**

  At least 30 (thirty) clear days before the date of the meeting(s) to be held, as aforesaid, notices convening the said meeting(s), along with all documents required to be sent with the same, including a copy of the said Scheme, statement prescribed under the provisions of the Act

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disclosing necessary details and the prescribed form of proxy, shall be sent to each of Secured Creditors of Applicant No 1, Applicant No 2, Applicant No 3, Applicant No 4 and Applicant No 5 as per Rule 6 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, by speed post or ordinary post or courier or email or through personal messenger at their respective or last known addresses. The said notices along with accompanying documents shall also be posted on the websites of the Applicant(s).

- **Chairperson**: Mr. Shivendra Bahadur, Advocate (Mobile No. 7355124069) is appointed as the Chairperson of the meetings to be held, as aforesaid. Each of these persons shall be paid a consolidated sum of ₹1,00,000/- for conducting the aforesaid meeting. The Chairperson shall have all other powers under the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016 read with the other applicable rules and provisions in relation to conduct of the meeting, including for deciding procedural questions that may arise at the meeting or at any adjournment thereof, or any other matter relating to the meeting, including an amendment to the Scheme, if any proposed by any persons.

- **Scrutiniser:** Mr. Anil Kumar, Practicing Company Secretary (Mobile No. 9415306147) is appointed as the Scrutiniser of the meetings to be held, as aforesaid. He shall be paid a consolidated sum of ₹75,000/- for the meetings.

- **Quorum and Attendance:**

The quorum for the said meeting(s) of persons entitled to attend the same shall be determined in accordance with Section 103 of the Companies Act, 2013. For the meeting(s) to be held physically, only attendance of such persons physically at the venue shall be counted for quorum. Attendance at such meeting(s) shall be recorded in the minutes of the meeting(s).In case the quorum of any meeting is not present within half an hour from the time appointed for the meeting, then in such event the Creditors present shall constitute the quorum and the Chairperson appointed shall proceed with the meeting . In the event no Creditors is

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present to constitute quorum the Chairperson may adjourn such meeting to any date/time and take a decision on the quorum for the adjourned meeting.

- **Mode of Voting:**

  Voting at the venue of the meeting(s) shall be conducted physically by polling paper / Ballot Paper only.

- **Cut-off date:**

  The cut off date for determining the eligibility to vote and value of votes of the S Secured Creditors of Applicant No 1, Applicant No 2, Applicant No 3, Applicant No 4 and Applicant No 5 shall be as on 31st March,2022.

  Notices will be sent to all those who are Secured Creditors of Applicant No 1, Applicant No 2, Applicant No 3, Applicant No 4 and Applicant No 5 as on 31stMarch,2022.

- **Voting procedure:**

  Subject to the directions and matters dealt with herein, the procedure for voting by polling paper/ ballot paper and conduct of voting, in so far as the same is prescribed by the Companies (Management & Administration) Rules, 2014 ("the said Rules"), and the forms there under shall be followed with such variations as required in the circumstances and in relation to the resolution for approval of the Scheme.

- **Proxies & Board Resolutions:**

  A person, including a Body Corporate, entitled to attend and vote at the venue of a meeting, as aforesaid, may do so personally or by proxy, provided the proxies in the prescribed form duly signed by such person and/or the certified copy of resolution of the Board of Directors or other governing body of such person, where it is a Body Corporate, authorizing its representative to attend and vote at such meeting on its behalf, as the case may be, is deposited at the registered office of the

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concerned Applicant Company not later than 48 (forty eight) hours before the time for holding such meeting.

17. That the Chairperson appointed for the said meeting(s) or any person authorized by the Chairperson do issue and send the notices of the aforesaid meeting(s).The value of each Creditor shall be in accordance with the books and records of the Applicant(s) and, where entries in the books are disputed, the chairperson shall determine the value for purposes of the said meeting(s).
18. The resolution for approval of the Scheme of Arrangement put to a meeting shall, if passed by a majority in number representing three-fourths in value of the creditors casting their votes, as aforesaid, shall be deemed to have been duly passed on the date of such meeting under Section 230(1) read with Section 232(1) of the Companies Act, 2013.
19. The Chairperson do report to this Tribunal the results of the said meeting(s) within four weeks from the date of the conclusion of the said meeting(s). Such report shall be in Form No. CAA4 of the Companies (Compromises, Arrangements and Amalgamations) Rules, 2016, verified by affidavit.
20. Notice under Section 230(5) of the Companies Act, 2013 along with all accompanying documents, including a copy of the aforesaid Scheme and statement under the provisions of the Companies Act, 2013 shall also be served on the :

    a. Regional Director, Northern Region, Ministry of Corporate Affairs,
    b. Registrar of Companies , Kanpur , Uttar Pradesh
    c. Official Liquidator; Allahabad , Uttar Pradesh
    d. Reserve Bank of India
    e. Income Tax Department having jurisdiction over the Applicant(s)

    by sending the same by hand delivery through special messenger or by post or by email within two weeks from the date of receiving this order. The notice shall specify that representation, if any, should be filed before this

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Tribunal within 30 days from the date of receipt of the notice with a copy of such representation being simultaneously sent to the Authorized Representative of the said Applicant(s). If no such representation is received by the Tribunal within such period, it shall be presumed that such authorities have no representation to make on the said Scheme of Amalgamation. Such notice shall be sent pursuant to Section 230(5) of the Companies Act, 2013 read with Rule 8(2) of the Companies (Compromises, Arrangements and Amalgamations) Rules 2016 in Form No. CAA3 of the said Rules with necessary variations, incorporating the directions herein.

21. The Applicant(s) to file an affidavit proving service of notices of meeting(s) and publication of advertisement and compliance of all directions contained herein at least a week before the meeting(s) to be held.

22. The application being Company Application (CAA) No. 4 / ALD / 2022 is disposed of accordingly.

23. Urgent Certified copy of this order, if applied or, be supplied to the parties, subject to compliance with all requisite formalities.

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Rajasekhar V K

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Date: 2022.04.20 16:13:36 +05'30'

(Virendra Kumar Gupta)
Member (Technical)

(Rajasekhar V.K)
Member (Judicial)